

24NNCV03305 24NNCV03305

County: los-angeles

Division: Civil Law and Motion

Department: X

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Case Number: 24NNCV03305 Hearing Date: June 30, 2026 Dept: X

#11 - LANA J. KIM vs VOLKSWAGEN GROUP OF AMERICA, INC.

Motion for Attorney Fees

Plaintiff's Motion for Attorney Fees is granted in part. Attorney fees are awarded in the total amount of \$47,617.

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case to fix the fee at the fair market value of the legal services provided. (Ibid.) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award. (Ibid.)

In determining hourly rates, the court must look to the 'prevailing market rates in the relevant community.'" (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 100.) In making this determination, "[t]he court may rely on its own knowledge and familiarity with the legal market." (Ibid.) The Court determines that the hourly rates for the professionals working on this matter are reasonable. As to the hours expended, the Court determines that \$47,617 accounts for reasonable time spent on this matter. (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 101 [a reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections]; Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448 [court may also consider whether the amount requested is based upon unnecessary or duplicative work].)

The Court declines to apply a multiplier. (See Ketchum v. Moses (2001) 24 Cal.4th 1122, 1142 [use of counsel's qualifications and exceptional representation both in calculating hourly rate and in applying a multiplier amounts to "improper double counting" of factors].)

Plaintiff requests a total of \$4,137.49 in costs and expenses. The Court strikes \$66.87 in fees consisting of postage, photocopies, personal service of discovery, courtesy copies of opposition, transcripts, and a certificate of nonappearance. Per Code of Civil Procedure Section 1033.5, subdivision (b), postage and photocopying charges (except for exhibits) are not allowable costs, except when expressly authorized by law. The total costs allowed are \$4,070.62.

Unless waived by the parties, Moving Party is to give notice.